

SYNTHETIC DOCUMENT - fictional content generated for testing. Not a real legal document.

SOFTWARE LICENSE AGREEMENT

This Software License Agreement (·Agreement·) is entered into as of March 15, 2025 (·Effective Date·), by and between NexusCore Technologies Inc., an Ontario corporation having its principal place of business at 225 Maplewood Avenue, Toronto, Ontario M5V 3C4 (·Licensor·), and Lumina Data Solutions Ltd., an Ontario corporation having its principal place of business at 4120 Enterprise Drive, Mississauga, Ontario L5L 4R8 (·Licensee·).

RECITALS

WHEREAS, Licensor has developed certain proprietary software known as ·NexusPath Analytics Suite· (·Software·);

WHEREAS, Licensee desires to obtain from Licensor, and Licensor desires to grant to Licensee, a license to use the Software under the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

1. Definitions

1.1 ·Authorized Users· means the employees, contractors, and agents of Licensee who are authorized to use the Software in accordance with this Agreement.

1.2 ·Documentation· means the user manuals, technical specifications, and other related materials provided by Licensor with the Software.

1.3 ·Confidential Information· means all information disclosed by one party to the other in connection with this Agreement, in tangible or intangible form, that is designated as confidential or that reasonably should be understood to be confidential.

2. Grant of License

2.1 License. Subject to the terms and conditions of this Agreement, Licensor hereby grants to Licensee a non-exclusive, non-transferable, worldwide license to use the Software and Documentation solely for Licensee's internal business purposes.

2.2 Scope of Use. Licensee may install and use the Software for up to 500 Authorized Users. Use beyond this number shall require Licensor's prior written consent and payment of additional license fees.

3. License Fees and Payment

3.1 Fees. In consideration for the license granted herein, Licensee shall pay Licensor an initial license fee of CAD \$120,000, payable within thirty (30) days of the Effective Date.

3.2 Annual Maintenance and Support Fee. Licensee shall pay an annual maintenance and support fee (·Maintenance Fee·) of CAD \$24,000, commencing on the first anniversary of the Effective Date and each year thereafter on the same date.

3.3 Payment Terms. All payments shall be made in Canadian dollars and are due within thirty (30) days of the applicable invoice date. Late payments shall accrue interest at 1.5% per month or the highest rate permitted by law, whichever is less.

4. Delivery and Installation

4.1 Delivery. Licensor shall deliver the Software and Documentation to Licensee electronically within ten (10) business days following the Effective Date.

4.2 Installation Assistance. Licensor shall provide up to twenty (20) hours of remote installation

assistance at no additional charge, to be utilized within sixty (60) days of delivery.

5. Licensee Obligations

5.1 Authorized Users. Licensee shall ensure that only Authorized Users have access to the Software and shall be responsible for compliance with the terms of this Agreement by such users.

5.2 Restrictions. Licensee shall not (a) copy, modify, distribute, or create derivative works of the Software except as expressly permitted herein; (b) reverse engineer, decompile, or disassemble the Software; or (c) sublicense, rent, lease, or lend the Software.

5.3 Security. Licensee shall implement reasonable security measures to protect the Software from unauthorized access or use.

6. Intellectual Property Rights

6.1 Ownership. Licensor retains all right, title, and interest in and to the Software and Documentation, including all intellectual property rights therein.

6.2 No Transfer of Ownership. Licensee's rights under this Agreement are limited to the license granted and do not convey any ownership interest in the Software.

7. Confidentiality

7.1 Confidentiality Obligations. Each party agrees to keep Confidential Information disclosed by the other party in strict confidence, to use it only for purposes of performing under this Agreement, and not to disclose it to any third party without the other party's prior written consent.

7.2 Exceptions. Confidential Information does not include information that (a) was known to the receiving party before receipt from the disclosing party; (b) becomes publicly available other than through a breach of this Agreement; or (c) is independently developed without use of the disclosing party's Confidential Information.

8. Warranties and Disclaimers

8.1 Licensor Warranties. Licensor warrants that for a period of ninety (90) days following delivery, the Software will substantially conform to the Documentation and operate substantially in accordance with the specifications set forth therein.

8.2 Remedy. Licensee's sole and exclusive remedy for breach of the warranty in Section 8.1 shall be the correction or replacement of the non-conforming Software by Licensor, at Licensor's option.

8.3 Disclaimer. EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT, THE SOFTWARE IS PROVIDED "AS IS," AND LICENSOR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

9. Limitation of Liability

9.1 Limitation. IN NO EVENT SHALL LICENSOR BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATING TO THIS AGREEMENT OR THE USE OF THE SOFTWARE, INCLUDING LOSS OF PROFITS, REVENUE, OR DATA.

9.2 Cap on Liability. LICENSOR'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE AMOUNT PAID BY LICENSEE TO LICENSOR IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

10. Term and Termination

10.1 Term. This Agreement shall commence on the Effective Date and shall continue for a minimum term of three (3) years, unless terminated earlier pursuant to Sections 10.2 or 10.3.

10.2 Termination for Cause. Either party may terminate this Agreement upon thirty (30) days' prior written notice if the other party materially breaches any provision of this Agreement and fails to

cure such breach within the notice period.

10.3 Termination for Insolvency. Either party may terminate this Agreement immediately upon written notice if the other party becomes insolvent, files for bankruptcy, or ceases business operations.

10.4 No Termination for Convenience. Under no circumstances shall either party have the right to terminate this Agreement for convenience or without cause prior to the expiration of the initial three (3) year term.

10.5 Effect of Termination. Upon termination or expiration of this Agreement, Licensee shall immediately cease use of the Software and return or destroy all copies of the Software and Documentation in its possession.

11. Indemnification

11.1 By Licensor. Licensor shall indemnify, defend, and hold harmless Licensee from any claim, suit, or proceeding brought against Licensee to the extent it alleges that the Software infringes any Canadian intellectual property right, provided Licensee promptly notifies Licensor in writing and gives Licensor sole control of the defense and settlement thereof.

11.2 By Licensee. Licensee shall indemnify, defend, and hold harmless Licensor from any claim, suit, or proceeding arising from Licensee's misuse of the Software or breach of this Agreement.

12. Dispute Resolution and Governing Law

12.1 Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein.

12.2 Venue. The parties consent to the exclusive jurisdiction of the Ontario Superior Court of Justice for resolution of any disputes arising under this Agreement. Reference is made to court file number 2025-ON-SLA-3917 for any prior related matters.

12.3 Mediation. Prior to initiating legal proceedings, the parties agree to attempt in good faith to resolve any dispute through mediation with a mutually agreed mediator in Toronto, Ontario.

13. Miscellaneous

13.1 Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements or understandings relating to its subject matter.

13.2 Amendments. No amendment or modification of this Agreement shall be effective unless in writing and signed by authorized representatives of both parties.

13.3 Assignment. Neither party may assign or transfer this Agreement without the other party's prior written consent, except to a successor in interest in connection with a merger or acquisition.

13.4 Notices. All notices under this Agreement shall be in writing and deemed given when delivered personally, sent by registered mail, or by recognized courier to the addresses set forth above or to such other address as a party may designate by notice.

13.5 Severability. If any provision of this Agreement is held invalid or unenforceable, the remainder shall continue in full force and effect.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

NEXUSCORE TECHNOLOGIES INC.

By: _____

Name: David P. Thornton

Title: Chief Executive Officer

Date: March 15, 2025

LUMINA DATA SOLUTIONS LTD.

By: _____

Name: Samantha K. Wong

Title: Director of Operations

Date: March 15, 2025